

Contract Data

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference:	KFI2-CD-2019
Date:	20-May-2019
Contract No.:	KMDA/KFI2/CW/2019-04
From:	Kaldera Metropolitan Development Authority (Employer)
To:	Ashgrove Infrastructure Consultants (Engineer); Rennick Builders Ltd. (Contractor)

This Contract Data forms part of the Contract and provides the specific values, periods, rates and particulars referred to in the General Conditions and the Particular Conditions. This Contract is entirely independent of any other contract package; no party, address, rate, or period below is shared with, or derived from, any other project.

1. THE PARTIES

Employer: Kaldera Metropolitan Development Authority

Employer's Address for Notices: KMDA Project Office, Level 4, Civic Tower, Rostam City, Republic of Kaldera

Employer's Electronic Address: projects.kfi2@kmda.gov.kl

Engineer: Ashgrove Infrastructure Consultants

Engineer's Address for Notices: Ashgrove House, 14 Prospect Street, Rostam City, Republic of Kaldera

Engineer's Site Office: KFI-2 Site Office, Verrin District, Rostam City

Engineer's Electronic Address: kfi2.engineer@ashgroveconsult.kl

Contractor: Rennick Builders Ltd.

Contractor's Address for Notices: Rennick Yard, 45 Foundry Road, Rostam City, Republic of Kaldera

Contractor's Site Office: KFI-2 Contractor's Compound, Verrin District, Rostam City

Contractor's Electronic Address: kfi2.pm@rennickbuilders.kl

2. THE PROJECT

Project Name: Kestrel Flyover Interchange Project — Package KFI-2

Contract Number: KMDA/KFI2/CW/2019-04

Site Location: Rostam Central Junction, connecting Highway N-7 and Ring Road R-2, Verrin District, Rostam City, Republic of Kaldera

3. KEY DATES AND PERIODS

Letter of Acceptance Date: 6 May 2019

Commencement Date: 3 June 2019

Time for Completion: 24 months from the Commencement Date, being 2 June 2021

Defects Notification Period: 365 days from the date stated in the Taking-Over Certificate (not reached on this Contract; the Contract was terminated before Taking-Over)

4. CONTRACT AMOUNT AND CURRENCY

Payment Currency: Kaldera Dollar (KLD)

Contract Amount: KLD 36,000,000 (Kaldera Dollars thirty-six million)

5. SECURITY

Performance Security Percentage: 10 per cent of the Contract Amount

Performance Security: KLD 3,600,000, in the form of an unconditional and irrevocable bank guarantee

6. RETENTION

Retention Percentage: 5 per cent of each amount otherwise due

Limit of Retention Money: KLD 1,800,000, being 5 per cent of the Contract Amount

7. DELAY DAMAGES

Delay Damages Rate (Sub-Clause 15.4): 0.06 per cent of the Contract Amount for each day of delay, being KLD 21,600 per day

Maximum Delay Damages: 10 per cent of the Contract Amount, being KLD 3,600,000

8. PAYMENT

Interim Payment Frequency: Monthly

Engineer Certification Period: 21 days from receipt of a compliant Statement

Employer Payment Period (including payment of a Final Payment Certificate under Sub-Clause 15.4): 56 days from the date of certification

9. NOTICE TO CORRECT

Minimum period to be stated in a notice under Sub-Clause 15.1 (Particular Conditions Part C.1): not less than 42 days from the date of the notice, save where the Engineer states a shorter period is reasonable having regard to the nature and urgency of the failure identified

10. WORKING DAYS AND HOURS

Working Days: Monday to Saturday, excluding public holidays observed at the Site

Working Hours: 07:00 to 19:00

11. ENGINEER'S RESIDENT REPRESENTATIVE

Resident Engineer: Er. Priya Solheim

Address: KFI-2 Site Office, Verrin District, Rostam City

Scope of Delegation: as recorded in the Engineer's notice to the Contractor issued pursuant to Part B.1 of the Particular Conditions

KESTREL FLYOVER INTERCHANGE PROJECT

Package KFI-2

CONTRACT DATA

[END OF CONTRACT DATA]